

supposed to interrogate Morrissey-Berru to confirm that she attended Mass every Sunday?

Respondents argue that the *Hosanna-Tabor* exception is not workable unless it is given a rigid structure, but we declined to adopt a “rigid formula” in *Hosanna-Tabor*, and the lower courts have been applying the exception for many years without such a formula. Here, as in *Hosanna-Tabor*, it is sufficient to decide the cases before us. When a school with a religious mission entrusts a teacher with the responsibility of educating and forming students in the faith, judicial intervention into disputes between the school and the teacher threatens the school’s independence in a way that the First Amendment does not allow.

* * *

For these reasons, the judgment of the Court of Appeals in each case is reversed, and the cases are remanded for proceedings consistent with this opinion.

It is so ordered.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring.

I agree with the Court that Morrissey-Berru’s and Biel’s positions fall within the “ministerial exception,”¹ because, as Catholic school teachers, they are charged with “carry[ing] out [the religious] mission” of the parish schools. *Ante*, at 757. The Court properly notes that “judges have no warrant to second-guess [the schools’] judgment” of who should hold such a position “or to impose their own credentialing require-

¹ As the Court acknowledges, the term “ministerial exception” is somewhat of a misnomer. See *ante*, at 747. The First Amendment’s protection of religious organizations’ employment decisions is not limited to members of the clergy or others holding positions akin to that of a “minister.” *Ibid.* Rather, as these cases demonstrate, such protection extends to the laity, provided they are entrusted with carrying out the religious mission of the organization. *Ante*, at 738, 756–757.

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ments.” *Ante*, at 759. Accordingly, I join the Court’s opinion in full. I write separately, however, to reiterate my view that the Religion Clauses require civil courts to defer to religious organizations’ good-faith claims that a certain employee’s position is “ministerial.” See *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U. S. 171, 196 (2012) (THOMAS, J., concurring).

This deference is necessary because, as the Court rightly observes, judges lack the requisite “understanding and appreciation of the role played by every person who performs a particular role in every religious tradition.” *Ante*, at 757. What qualifies as “ministerial” is an inherently theological question, and thus one that cannot be resolved by civil courts through legal analysis. See *Hosanna-Tabor*, *supra*, at 197 (THOMAS, J., concurring); see also Memorial and Remonstrance Against Religious Assessments, in *Selected Writings of James Madison* 21, 24 (R. Ketcham ed. 2006) (the idea that a “Civil Magistrate is a competent Judge of Religious truth” is “an arrogant pretension” that has been “falsified”). Contrary to the dissent’s claim, judges do not shirk their judicial duty or provide a mere “rubber stamp” when they defer to a religious organization’s sincere beliefs. *Post*, at 773 (opinion of SOTOMAYOR, J.). Rather, they heed the First Amendment, which “commands civil courts to decide [legal] disputes without resolving underlying controversies over religious doctrine.” *Presbyterian Church in U. S. v. Mary Elizabeth Blue Hull Memorial Presbyterian Church*, 393 U. S. 440, 449 (1969); see also *ante*, at 751, n. 10.

Moreover, because the application of the exception turns on religious beliefs, the duties that a given religious organization will deem “ministerial” are sure to vary. Although the functions recognized as ministerial by the Lutheran school in *Hosanna-Tabor* are similar to those considered ministerial by the Catholic schools here, such overlap will not necessarily exist with other religious organizations, particularly those “outside of the ‘mainstream.’” 565 U. S.,

at 197 (THOMAS, J., concurring). To avoid disadvantaging these minority faiths and interfering in “a religious group’s right to shape its own faith and mission,” *id.*, at 188 (majority opinion), courts should defer to a religious organization’s sincere determination that a position is “ministerial.” *Id.*, at 197 (THOMAS, J., concurring).

The Court’s decision today is a step in the right direction. The Court properly declines to consider whether an employee shares the religious organization’s beliefs when determining whether that employee’s position falls within the “ministerial exception,” explaining that to “determin[e] whether a person is a ‘co-religionist’ . . . would risk judicial entanglement in religious issues.” *Ante*, at 761. But the same can be said about the broader inquiry whether an employee’s position is “ministerial.” This Court usually goes to great lengths to avoid governmental “entanglement” with religion, particularly in its Establishment Clause cases. See, e.g., *Lemon v. Kurtzman*, 403 U. S. 602, 613 (1971).² For example, the Court has held that a public school became impermissibly “entangle[d]” with religion by simply *permitting* students to say a prayer before football games and overseeing a class election for whom would deliver the prayer. *Santa Fe Independent School Dist. v. Doe*, 530 U. S. 290, 305–307 (2000). And, in *Locke v. Davey*, 540 U. S. 712 (2004), the Court concluded that it would violate States’ “antiestablishment interests” if tax dollars even indirectly supported the education of ministers, *id.*, at 722. But, when it comes to the autonomy of religious organizations in our ministerial-

² As I have previously explained, this Court’s Establishment Clause jurisprudence “is unmoored from the original meaning of the First Amendment.” *Espinoza v. Montana Dept. of Revenue*, 591 U. S. 464, 490 (2020) (concurring opinion). Properly understood, the Establishment Clause proscribes governmental “‘coercion of religious orthodoxy and of financial support by force of law and threat of penalty.’” *American Legion v. American Humanist Assn.*, 588 U. S. 29, 75 (2019) (THOMAS, J., concurring in judgment) (quoting *Lee v. Weisman*, 505 U. S. 577, 640 (1992) (Scalia, J., dissenting)).

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exception cases, these concerns of entanglement have not prevented the Court from weighing in on the theological questions of which positions qualify as “ministerial.”

As this Court has explained, the Religion Clauses do not permit governmental “interfere[nce] with . . . a religious group’s right to shape its own faith and mission through its appointments.” *Hosanna-Tabor, supra*, at 188. To avoid such interference, we should defer to these groups’ good-faith understandings of which individuals are charged with carrying out the organizations’ religious missions.

Here, the record confirms the sincerity of petitioners’ claims that, as lay teachers, Morrissey-Berru and Biel held ministerial roles in these parish schools. For example, the Our Lady of Guadalupe Faculty Handbook states that lay teachers serve “special *pastoral* administrative roles . . . in the service of the people of God.” App. to Pet. for Cert. in No. 19–267, p. 52a (emphasis added). Moreover, their “essential job duties” include “[m]odeling, teaching of and commitment to Catholic religious and moral values.” *Id.*, at 55a (boldface deleted); see also *id.*, at 32a (Morrissey-Berru’s teaching contract); App. to Pet. for Cert. in No. 19–348, p. 96a (Biel’s teaching contract). And both Morrissey-Berru’s and Biel’s teaching contracts required that their “duties and responsibilities . . . be performed [with an] overriding commitment” to “develop[ing] . . . a Catholic School Faith Community” in accordance with “the doctrines, laws and norms of the Catholic Church.” *Ibid.*; App. to Pet. for Cert. in No. 19–267, at 32a. Finally, *amicus curiae* United States Conference of Catholic Bishops confirms that petitioners’ understanding is consistent with the Church’s view that “Catholic teachers play a critical role” in the Church’s ministry. Brief for United States Conference of Catholic Bishops 10–11; see also Catechism of the Catholic Church 8 (2d ed. 1994) (noting that the goal of “education in the faith of children [is] to initiat[e] the hearers into the fullness of Christian life” (emphasis deleted; internal quotation marks omitted)).

The foregoing is more than enough to sustain the sincerity of petitioners' claims that Morrissey-Berru and Biel held ministerial roles in the parish schools. Their claims thus warrant this Court's deference and serve as a sufficient basis for applying the ministerial exception.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

Two employers fired their employees allegedly because one had breast cancer and the other was elderly. Purporting to rely on this Court's decision in *Hosanna-Tabor Evangelical Lutheran Church and School v. EEOC*, 565 U. S. 171 (2012), the majority shields those employers from disability and age-discrimination claims. In the Court's view, because the employees taught short religion modules at Catholic elementary schools, they were "ministers" of the Catholic faith and thus could be fired for any reason, whether religious or nonreligious, benign or bigoted, without legal recourse. The Court reaches this result even though the teachers taught primarily secular subjects, lacked substantial religious titles and training, and were not even required to be Catholic. In foreclosing the teachers' claims, the Court skews the facts, ignores the applicable standard of review, and collapses *Hosanna-Tabor's* careful analysis into a single consideration: whether a church thinks its employees play an important religious role. Because that simplistic approach has no basis in law and strips thousands of schoolteachers of their legal protections, I respectfully dissent.

I

A

Our pluralistic society requires religious entities to abide by generally applicable laws. *E.g.*, *Employment Div., Dept. of Human Resources of Ore. v. Smith*, 494 U. S. 872, 879–882 (1990). Consistent with the First Amendment (and over sincerely held religious objections), the Government may

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compel religious institutions to pay Social Security taxes for their employees, *United States v. Lee*, 455 U. S. 252, 256–261 (1982), deny nonprofit status to entities that discriminate because of race, *Bob Jones Univ. v. United States*, 461 U. S. 574, 603–605 (1983), require applicants for certain public benefits to register with Social Security numbers, *Bowen v. Roy*, 476 U. S. 693, 699–701 (1986), enforce child-labor protections, *Prince v. Massachusetts*, 321 U. S. 158, 166–170 (1944), and impose minimum-wage laws, *Tony and Susan Alamo Foundation v. Secretary of Labor*, 471 U. S. 290, 303–306 (1985).

Congress, however, has crafted exceptions to protect religious autonomy. Some antidiscrimination laws, like the Americans with Disabilities Act, permit a religious institution to consider religion when making employment decisions. 42 U. S. C. § 12113(d)(1). Under that Act, a religious organization may also “require that all applicants and employees conform” to the entity’s “religious tenets.” § 12113(d)(2). Title VII further permits a school to prefer “hir[ing] and employ[ing]” people “of a particular religion” if its curriculum “propagat[es]” that religion. § 2000e–2(e); see also § 2000e–1(a). These statutory exceptions protect a religious entity’s ability to make employment decisions—hiring or firing—for religious reasons.

The “ministerial exception,” by contrast, is a judge-made doctrine. This Court first recognized it eight years ago in *Hosanna-Tabor*, concluding that the First Amendment categorically bars certain antidiscrimination suits by religious leaders against their religious employers. 565 U. S., at 188–190. When it applies, the exception is extraordinarily potent: It gives an employer free rein to discriminate because of race, sex, pregnancy, age, disability, or other traits protected by law when selecting or firing their “ministers,” even when the discrimination is wholly unrelated to the employer’s religious beliefs or practices. *Id.*, at 194–195. That is, an employer need not cite or possess a religious reason at all; the ministerial exception even condones animus.

When this Court adopted the ministerial exception, it affirmed the holdings of virtually every federal appellate court that had embraced the doctrine. *Id.*, at 188, and n. 2. Those courts had long understood that the exception's stark departure from antidiscrimination law is narrow. Wary of the exception's "potential for abuse," federal courts treaded "case-by-case" in determining which employees are ministers exposed to discrimination without recourse. *Scharon v. St. Luke's Episcopal Presbyterian Hospitals*, 929 F. 2d 360, 363, n. 3 (CA8 1991). Thus, their analysis typically trained on whether the putative minister was a "spiritual leade[r]" within a congregation such that "he or she should be considered clergy." *Rayburn v. General Conference of Seventh-day Adventists*, 772 F. 2d 1164, 1168–1169 (CA4 1985) (internal quotation marks omitted); see also *Hankins v. Lyght*, 441 F. 3d 96, 117–118, and n. 13 (CA2 2006) (Sotomayor, J., dissenting) (cataloging Circuit consensus). That approach recognized that a religious entity's ability to choose its faith leaders—rabbis, priests, nuns, imams, ministers, to name a few—should be free from government interference, but that generally applicable laws still protected most employees.

This focus on leadership led to a consistent conclusion: Lay faculty, even those who teach religion at church-affiliated schools, are not "ministers." In *Geary v. Visitation of Blessed Virgin Mary Parish School*, 7 F. 3d 324 (1993), for instance, the Third Circuit rejected a Catholic school's view that "[t]he unique and important role of the elementary school teacher in the Catholic education system" barred a teacher's discrimination claim under the First Amendment. *Id.*, at 331. In *Dole v. Shenandoah Baptist Church*, 899 F. 2d 1389 (1990), the Fourth Circuit found a materially similar statutory ministerial exception inapplicable to teachers who taught "all classes" "from a pervasively religious perspective," "le[d]" their "students in prayer," and were "required to subscribe to [a church] statement of faith as a condition of employment." *Id.*, at 1396. Similar examples

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abound. See, e.g., *EEOC v. Mississippi College*, 626 F. 2d 477, 479, 485 (CA5 1980) (ministerial exception inapplicable to faculty members of a Baptist college that “conceive[d] of education as an integral part of its Christian mission” and “expected” faculty “to serve as exemplars of practicing Christians”); *EEOC v. Fremont Christian School*, 781 F. 2d 1362, 1369–1370 (CA9 1986) (ministerial exception inapplicable to teachers whom a church considered as performing “an integral part of the religious mission of the Church to its children”); cf. *Rayburn*, 772 F. 2d, at 1168 (“Lay ministries, even in leadership roles within a congregation, do not compare to the institutional selection for hire of one member with special theological training to lead others”).

Hosanna-Tabor did not upset this consensus. Instead, it recognized the ministerial exception’s roots in protecting religious “elections” for “ecclesiastical offices” and guarding the freedom to “select” titled “clergy” and churchwide leaders. 565 U. S., at 182, 184, 186–187 (internal quotation marks omitted). To be sure, the Court stated that the “ministerial exception is not limited to the head of a religious congregation.” *Id.*, at 190. Nevertheless, this Court explained that the exception applies to someone with a leadership role “distinct from that of most of [the organization’s] members,” someone in whom “[t]he members of a religious group put their faith,” or someone who “personif[ies]” the organization’s “beliefs” and “guide[s] it on its way.” *Id.*, at 188, 191, 196.¹

This analysis is context specific. It necessarily turns on, among other things, the structure of the religious organization at issue. Put another way (and as the Court repeats throughout today’s opinion), *Hosanna-Tabor* declined to

¹ While jettisoning most of *Hosanna-Tabor*’s majority opinion and insisting on “implicit” rationales that featured in a two-Justice concurrence, *ante*, at 753, today’s Court curiously accuses this dissent of “cobb[ling] together” a standard focused on leadership, *ante*, at 758, n. 26. But leadership was central in *Hosanna-Tabor*, just as it was explicit in the appellate court consensus that *Hosanna-Tabor* embraced. See *supra*, at 767–769.

adopt a “rigid formula for deciding when an employee qualifies as a minister.” *Id.*, at 190. Rather, *Hosanna-Tabor* focused on four “circumstances” to determine whether a fourth-grade teacher, Cheryl Perich, was employed at a Lutheran school as a “minister”: (1) “the formal title given [her] by the Church,” (2) “the substance reflected in that title,” (3) “her own use of that title,” and (4) “the important religious functions she performed for the Church.” *Id.*, at 190, 192. Confirming that the ministerial exception applies to a circumscribed subcategory of faith leaders, the Court analyzed those four “factors,” *ante*, at 752, to situate Perich as a minister within the Lutheran Church’s structure.

B

Those considerations showed that Perich had a unique leadership role within her church. First, the Court noted that the school had “held Perich out as a minister, with a role distinct from that of most of its members.” 565 U. S., at 191. When the school fired her, Perich was in the role of a “called teacher,” as opposed to her prior position of “lay teacher.” *Id.*, at 178. When the church “extended [Perich] a call,” it also “issued her a ‘diploma of vocation’ according her the title ‘Minister of Religion, Commissioned.’” *Id.*, at 191. And “[i]n a supplement to the diploma, the congregation undertook to periodically review Perich’s ‘skills of ministry’ and ‘ministerial responsibilities,’ and to provide for her ‘continuing education as a professional person in the ministry of the Gospel.’” *Ibid.*

Second, the Court observed that Perich’s job title “reflected a significant degree of religious training followed by a formal process of commissioning.” *Ibid.* Further distinguishing Perich from the rest of her faith community, the Court explained that Perich’s “eligib[ility] to become a commissioned minister” turned on her completion of a 6-year process requiring “eight college-level courses in subjects including biblical interpretation, church doctrine, and the ministry of the Lutheran teacher,” obtaining “the endorsement

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of her local Synod district,” and passing “an oral examination by a faculty committee at a Lutheran college.” *Ibid.*

Third, the Court observed that Perich “held herself out as a minister of the Church by accepting the formal call to religious service” and “in other ways as well.” *Ibid.* Unlike the lay teachers, for example, Perich claimed a tax exemption available only to employees earning compensation “in the exercise of the ministry.” *Id.*, at 192 (internal quotation marks omitted).

Finally, the Court looked to function, finding that Perich’s “job duties reflected a role in conveying the Church’s message and carrying out its mission” notably different from other members of the church. *Ibid.*; see also *id.*, at 188, 191. Perich was “expressly charged” with “lead[ing] others” in their faith and did so by teaching “her students religion four days a week” and “le[ading] them in prayer three times a day.” *Id.*, at 192 (internal quotation marks omitted). About twice a year, Perich led the schoolwide chapel service by “choosing the liturgy, selecting the hymns, and delivering a short message based on verses from the Bible.” *Ibid.* Perich also “led” her students “in a brief devotional exercise each morning.” *Ibid.* The Court thus observed that, “[a]s a source of religious instruction, Perich performed an important role in transmitting the Lutheran faith to the next generation.” *Ibid.*

Because this inquiry is holistic, the Court warned that it is “wrong” to “say that an employee’s title does not matter.” *Id.*, at 193. The Court was careful not to give religious functions undue weight in identifying church leaders. And the “amount of time an employee spends on particular activities,” the Court added, “is relevant in assessing that employee’s status” when measured against “the nature of the religious functions performed and the other considerations,” like titles, training, and how the employee held herself out to the public. *Id.*, at 194.

Hosanna-Tabor’s well-rounded approach ensured that a church could not categorically disregard generally applicable

antidiscrimination laws for nonreligious reasons. By analyzing objective and easily discernable markers like titles, training, and public-facing conduct, *Hosanna-Tabor* charted a way to separate leaders who “personify” a church’s “beliefs” or who “minister to the faithful” from individuals who may simply relay religious tenets. *Id.*, at 188, 195.² This balanced First Amendment concerns of state-church entanglement while avoiding an overbroad carveout from employment protections.

II

Until today, no court had held that the ministerial exception applies with disputed facts like these and lay teachers like respondents, let alone at the summary-judgment stage. See 911 F.3d 603, 610 (CA9 2018) (case below in No. 19–348); see also *supra*, at 768–769.

Only by rewriting *Hosanna-Tabor* does the Court reach a different result. The Court starts with an unremarkable view: that *Hosanna-Tabor*’s “recognition of the significance of” the first three “factors” in that case “did not mean that they must be met—or even that they are necessarily important—in all other cases.” *Ante*, at 752. True enough. One can easily imagine religions incomparable to those at issue in *Hosanna-Tabor* and here. But then the Court recasts *Hosanna-Tabor* itself: Apparently, the touchstone all along was a two-Justice concurrence. To that concurrence,

²Today’s Court resists this commonsense approach, warning that it might mean that “a member of the Christian clergy or a rabbi” who “spends almost all of his or her time studying Scripture or theology and writing” would not fall within the ministerial exception. *Ante*, at 758, n. 26. Those examples betray the Court’s holding: As the Court intuits (but does not recognize), the examples likely fall within the ministerial exception not just because of the functions involved but also because of the titles (“clergy” and “rabbi”), the training required to obtain those titles, and the time spent on religious activity (“almost all” of one’s time). *Ibid.* It should be equally obvious that someone who spends a sliver of time reading, writing, or teaching about religion does not automatically become a minister of that religion.

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“[w]hat matter[ed]” was “the religious function that [Perich] performed” and her “functional status.” *Hosanna-Tabor*, 565 U.S., at 206 (opinion of ALITO, J.). Today’s Court yields to the concurrence’s view with identical rhetoric. “What matters,” the Court echoes, “is what an employee does.” *Ante*, at 753.

But this vague statement is no easier to comprehend today than it was when the Court declined to adopt it eight years ago. It certainly does not sound like a legal framework. Rather, the Court insists that a “religious institution’s explanation of the role of [its] employees in the life of the religion in question is important.” *Ante*, at 757; see also *ante*, at 762–763 (THOMAS, J., concurring) (urging complete deference to a religious institution in determining which employees are exempt from antidiscrimination laws). But because the Court’s new standard prizes a functional importance that it appears to deem churches in the best position to explain, one cannot help but conclude that the Court has just traded legal analysis for a rubber stamp.³

Indeed, the Court reasons that “judges cannot be expected to have a complete understanding and appreciation” of the law and facts in ministerial-exception cases, *ante*, at 757, and all but abandons judicial review. Although today’s decision is limited to certain “teachers of religion,” *ante*, at 757–759, its reasoning risks rendering almost every Catholic parishioner and parent in the Archdiocese of Los Angeles a Catholic min-

³ Elsewhere, the Court hints at a comparative inquiry, noting that Biel and Morrissey-Berru were the school staff “entrusted most directly” with “educating their students in the faith.” *Ante*, at 757. Setting aside the Court’s factual assumptions, one must ask: “[M]ost directly” compared to what (or whom)? The Court does not say. Perhaps the Court means to embrace the predominant Circuit approach, which looked at whether a putative minister “serv[ed] primarily religious roles.” *Hankins v. Lyght*, 441 F.3d 96, 117, 118, n. 13 (CA2 2006) (Sotomayor, J., dissenting) (identifying seven Circuits); see also, e.g., *Petruska v. Gannon University*, 462 F.3d 294, 304, n. 6, 307 (CA3 2006). But were that the case, the teachers would have undoubtedly prevailed here.

ister.⁴ That is, the Court's apparent deference here threatens to make nearly anyone whom the schools might hire "ministers" unprotected from discrimination in the hiring process. That cannot be right. Although certain religious functions may be important to a church, a person's performance of some of those functions does not mechanically trigger a categorical exemption from generally applicable antidiscrimination laws.

Today's decision thus invites the "potential for abuse" against which courts of appeals have long warned. *Scharon*, 929 F. 2d, at 363, n. 3. Never mind that the Court renders almost all of the Court's opinion in *Hosanna-Tabor* irrelevant. It risks allowing employers to decide for themselves whether discrimination is actionable. Indeed, today's decision reframes the ministerial exception as broadly as it can, without regard to the statutory exceptions tailored to protect religious practice. As a result, the Court absolves religious institutions of any animus completely irrelevant to their religious beliefs or practices and all but forbids courts to inquire further about whether the employee is in fact a leader of the religion. Nothing in *Hosanna-Tabor* (or at least its majority opinion) condones such judicial abdication.

III

Faithfully applying *Hosanna-Tabor*'s approach and common sense confirms that the teachers here are not Catholic "ministers" as a matter of law. This is especially so because

⁴ See, e. g., Archdiocese of Los Angeles, Administrative Handbook § 2.3.1 ("[P]arishioners are vital to parish life as volunteers. They participate as catechists in religious education, organize youth ministry and adult events, assist in charitable and social outreach activities in the community, and serve as extraordinary ministers of the Eucharist, lectors, altar servers, and ushers, as well as in other supporting ministerial roles"); Pope Francis, Post-Synodal Apostolic Exhortation on Love in the Family 13–14 (2016) ("The family is . . . the place where parents become their children's first teachers in the faith Parents have a serious responsibility for this work of education").

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the employers seek summary judgment, meaning the Court must “view the facts and draw reasonable inferences in the light most favorable to” the teachers. *Scott v. Harris*, 550 U. S. 372, 378 (2007) (internal quotation marks omitted).⁵

A

1

Respondent Kristen Biel was a teacher at St. James School, a Catholic school in the Archdiocese of Los Angeles.⁶ Biel initially served as a substitute teacher, teaching first grade two days a week. App. 248–249. At the end of the 2013 school year, the school hired Biel as a full-time fifth-grade teacher. 911 F. 3d, at 605; App. 250.

Biel’s employment contract identified her position as just that: “Grade 5 Teacher.” App. to Pet. for Cert. in No. 19–348, p. 103a; App. 328–329. The contract referred to Biel throughout as “teacher,” and directed her to the benefits guide for “Lay Employees.” App. to Pet. for Cert. in No. 19–348, at 105a; App. 320, 325, 327–329. The contract also stated that Biel would work “within [St. James’s] overriding commitment” to church “doctrines, laws, and norms” and would “model, teach, and promote behavior in conform-

⁵The Court maintains that the Court of Appeals erred by “in effect” granting summary judgment to the teachers on the ministerial exception instead of “remand[ing] for a trial.” *Ante*, at 738, n. 1. Yet today’s decision commits the exact error it claims to diagnose: The Court views the facts in the light most favorable to the schools and “in effect” grants summary judgment to the movants instead of remanding for a trial. As explained below, the Court is also wrong to assert that there is no material fact genuinely in dispute. Compare *ante*, at 739, n. 1 (asserting that “neither party takes the position that any *material* fact is genuinely in dispute”) with, *e. g.*, Brief for Respondents 12–13, n. 4, 40–41 (taking the position that material facts are genuinely in dispute).

⁶Unlike the Court, I begin with Biel’s case because it was the first one decided and the only one deemed precedential below. Biel passed away last year, losing her life to the same cancer that allegedly lost her a job at St. James. Biel’s husband now represents her estate.

ity to the teaching of the Roman Catholic Church.” 911 F. 3d, at 605 (internal quotation marks omitted). According to the faculty handbook, all faculty (religion teachers or not) “participate in the Church’s mission” of providing “quality Catholic education to . . . students, educating them in academic areas and in . . . Catholic faith and values.” *Id.*, at 605–606 (internal quotation marks omitted). The faculty handbook further instructs teachers to follow California’s public school curricular requirements. *Id.*, at 606.

Although St. James School “recommended” that teachers be Catholic, the school did not require it. App. 289. Nor did the school require teachers to have experience, training, or schooling in religious pedagogy. 911 F. 3d, at 605. Biel had no such credentials when the school hired her, as she had received her bachelor’s degree in liberal arts and a teaching credential from a public university. *Ibid.* Even after she began working at St. James School, Biel’s “only” training in religious pedagogy was “a single half-day conference where topics ranged from the incorporation of religious themes into lesson plans to techniques for teaching art classes.” *Ibid.*; see also App. 242–244, 261–263.

Biel taught her fifth-grade class all its academic subjects, including English, spelling, reading, literature, mathematics, science, and social studies. 911 F. 3d, at 605; Excerpts of Record in No. 17–55180 (CA9), p. 588. This also involved a standard religion curriculum, which Biel taught for about 30 minutes four days a week. 911 F. 3d, at 605. When teaching religion, Biel followed instructions in a workbook that the school administration had prescribed. *Ibid.*; App. 254–255. Twice a day, Biel would pray with her students, but she “did not lead them.” 911 F. 3d, at 605. Rather, the class had student “prayer leaders” and “[t]he prayers that were said in the classroom were said mostly by the students.” App to Pet. for Cert. in No. 19–348, at 93a. As Biel explained, she “didn’t need to teach” her students any prayers, either, because “[t]hey already kn[e]w them” and “had prayer leaders.” *Ibid.*; contra, ante, at 760 (assert-

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ing without citation that Biel “taught [her students] prayers”). Once a month, Biel joined her students in the school’s multipurpose room for mass, which were always officiated by a Catholic priest or a nun. App. 258. The record does not show that Biel taught her students what to do at mass. *Ibid.* Rather, Biel’s “sole responsibility” during liturgy was “to keep her class quiet and orderly.” 911 F. 3d, at 605; App. 258–259.

Near the end of the school year, Biel learned that she had breast cancer and would need surgery and chemotherapy. Biel informed the school and explained that her condition would require her to take time off from work. 911 F. 3d, at 606; App. 266–269, 309. The school responded that she would not be welcomed back. 911 F. 3d, at 606; App. 270–273. At no point has St. James School suggested a religious reason for terminating Biel’s employment.

2

In 1998, after a 20-year career in newspaper advertising and copywriting, respondent Agnes Deirdre Morrissey-Berru began working as a substitute teacher at Our Lady of Guadalupe School, another Catholic school in Southern California. App. to Pet. for Cert. in No. 19–267, p. 80a; App. 74. More recently, she taught fifth and sixth grade full time. *Id.*, at 73–75.

Each year, Morrissey-Berru signed an employment contract with the school. Like Biel’s contracts, these agreements referred to Morrissey-Berru as “Teacher” and directed her to the benefits guide for “Lay Employees.” *Id.*, at 91–100, 127–164; App. to Pet. for Cert. in No. 19–267, at 32a–42a. Notably, the faculty handbook promised not to discriminate on the basis of any protected characteristic, including “race,” “sex,” “disability,” or “age.” Excerpts of Record in No. 17–56624 (CA9), p. 648.

“At no time” during her employment did Morrissey-Berru “feel God was leading [her] to serve in the ministry,” nor did she “believe [she] was accepting a formal . . . call to religious

service by working at Our Lady of Guadalupe as a fifth and sixth grade teacher.” App. to Brief in Opposition in No. 19–267, p. 2a. Morrissey-Berru, in fact, is not a practicing Catholic. *Ibid.* Although Our Lady of Guadalupe School “preferred” its teachers to be Catholic, there is a factual dispute whether the school insisted on that prerequisite without exception (and thus, for summary-judgment purposes, the Court must assume there was no absolute requirement). App. 110–111; *Scott*, 550 U.S., at 378. Nor did the school require teachers to have any background or training in Catholic pedagogy (or even religion). Morrissey-Berru had no such credentials when the school hired her, as she held a bachelor’s degree in English language arts with a minor in secondary education. App. 73–74. Many years after Morrissey-Berru had begun teaching at the school, though, the school did ask her to attend a catechist course on the history of the Catholic Church. 769 Fed. Appx. 460, 461 (CA9 2019) (*per curiam*) (case below in No. 19–267); App. to Pet. for Cert. in No. 19–267, at 85a. The record does not disclose whether Morrissey-Berru ever completed the full catechism-certification program, and in fact suggests that she did not. *E.g.*, Excerpts of Record in No. 17–56624, at 41–42, 44–45, 67.

Morrissey-Berru taught her class a range of subjects: reading, writing, math, grammar, vocabulary, science, social studies, and religion. App. 75. When teaching religion, Morrissey-Berru followed the contents of a preselected workbook. *Id.*, at 79–80. Morrissey-Berru also “led her students in daily prayer” and assisted with planning a monthly mass. 769 Fed. Appx., at 461. But she did not recall “lead[ing her] students in any devotional exercises.” App. to Pet. for Cert. in No. 19–267, at 89a.

In 2014, when Morrissey-Berru was in her sixties, the school did not renew Morrissey-Berru’s contract. *Id.*, at 30a–31a. Like St. James, Our Lady of Guadalupe School has neither cited nor asserted a religious reason for the termination.

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B

On these records, the Ninth Circuit correctly concluded that neither school had shown that the ministerial exception barred the teachers' claims for disability and age discrimination. At the very least, these cases should have proceeded to trial. Viewed in the light most favorable to the teachers, the facts do not entitle the employers to summary judgment.

First, and as the Ninth Circuit explained, neither school publicly represented that either teacher was a Catholic spiritual leader or "minister." Neither conferred a title reflecting such a position. Rather, the schools referred to both Biel and Morrissey-Berru as "lay" teachers, which the courts of appeals have long recognized as a mark of nonministerial, as opposed to "ministerial," status. See *supra*, at 768–769; App. to Pet. for Cert. in No. 19–267, at 32a–42a; App. 91–100, 127–164, 244–246, 320–329.

In response, the Court worries that "attaching too much significance to titles would risk privileging religious traditions with formal organizational structures over those that are less formal." *Ante*, at 753. That may or may not be true, but it is irrelevant here. These cases are not about "less formal" religions; they are about the Catholic Church and its publicized and undisputedly "formal organizational structur[e]." *Ibid*. After all, the right to free exercise has historically "allow[ed] churches and other religious institutions to define" their own "membership" and internal "organization." McConnell, *The Origins and Historical Understanding of Free Exercise of Religion*, 103 Harv. L. Rev. 1409, 1464–1465 (1990). But that freedom of choice should carry consequences in litigation. And here, like the faith at issue in *Hosanna-Tabor*, the Catholic Church uses formal titles.

The Court then turns to irrelevant or disputed facts. The Court notes, for example, that a religiously significant term "rabbi" translates to "teacher," *ante*, at 759, suggesting that Biel's and Morrissey-Berru's positions as lay teachers conferred religious titles after all. But that wordplay unravels

when one imagines the Court's logic as applied to a math or gym or computer "teacher" at either school. The title "teacher" does not convey ministerial status. Nor does the Court gain purchase from the disputed fact that Biel and Morrissey-Berru were "regarded as 'catechists'" "responsible for the faith formation of the[ir] students.'" *Ante*, at 740, 759. For one thing, the Court discusses evidence from only Morrissey-Berru's case (not Biel's).⁷ For another, the Court invokes the disputed deposition testimony of a school administrator while ignoring record evidence refuting that characterization and suggesting that Morrissey-Berru never completed the full catechist training program. See, *e.g.*, Excerpts of Record in No. 17-56624, at 41-42, 44-45, 67. Although the Archdiocese does confer titles and holds a formal "Catechist Commissioning" every September, *id.*, at 42, 45, the record does not suggest that either teacher here was so commissioned. In relying on disputed factual assertions, the Court's blinkered approach completely disregards the summary-judgment standard.

Second (and further undermining the schools' claims), neither teacher had a "significant degree of religious training" or underwent a "formal process of commissioning." *Hosanna-Tabor*, 565 U.S., at 191; cf. Excerpts of Record in No. 17-56624, at 42 (identifying similarly formal training and commissioning process within the Catholic Church). Nor did either school require such training or commissioning as a prerequisite to gaining (or keeping) employment. In Biel's case, the record reflects that she attended a single conference that lasted "four or five hours," briefly discussed "how to incorporate God into . . . lesson plans," and other-

⁷In Biel's case, the Court cites a page from St. James School's "Staff Guidelines and Responsibilities" setting out "'expect[at]ions'" and a declaration by the school principal about required attendance at a teacher conference. See *ante*, at 759, n. 28. Neither shows as a matter of law that Biel was a "catechist" or that formal religious training was a prerequisite to her position. See *infra* this page and 781.

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wise “showed [teachers] how to do art and make little pictures or things like that.” App. 262, 263. Notably, all elementary school faculty attended the conference, including the computer teacher. *Id.*, at 261–263. In turn, Our Lady of Guadalupe did not ask Morrissey-Berru to undergo any religious training for her first 13 years of teaching, until it asked her to attend the uncompleted program described above. See *id.*, at 76–77. This consideration instructs that the teachers here did not fall within the ministerial exception.

Third, neither Biel nor Morrissey-Berru held herself out as having a leadership role in the faith community. Neither claimed any benefits (tax, governmental, ceremonial, or administrative) available only to spiritual leaders. Cf. *Hosanna-Tabor*, 565 U.S., at 191–192. Nor does it matter that all teachers signed contracts agreeing to model and impart Catholic values. This component of the *Hosanna-Tabor* inquiry focuses on outward-facing behavior, and neither Biel nor Morrissey-Berru publicly represented herself as anything more than a fifth-grade teacher. App. to Brief in Opposition in No. 19–267, at 1a–2a; App. 249–250. The Court does not grapple with this third component of *Hosanna-Tabor*’s inquiry, which seriously undermines the schools’ cases.

That leaves only the fourth consideration in *Hosanna-Tabor*: the teachers’ function. To be sure, Biel and Morrissey-Berru taught religion for a part of some days in the week. But that should not transform them automatically into ministers who “guide” the faith “on its way.” *Hosanna-Tabor*, 565 U.S., at 196; see also *supra*, at 767–769. Although the Court does not resolve this functional question with “a stopwatch,” it still considers the “amount of time an employee spends on particular activities” in “assessing that employee’s status.” *Hosanna-Tabor*, 565 U.S., at 193–194. Here, the time Biel and Morrissey-Berru spent on secular instruction far surpassed their time teaching religion. For the vast majority of class, they taught subjects like reading,